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CITY OF HAVERHILL

HAVERHILL, MASSACHUSETTS 01830-5843

PUBLIC MEETING NOTICE

October 27, 2026

To: Kaitlin M. Wright, City Clerk
Re: Public Safety Committee Meeting
Thursday, November 12, 2026, at 6:00 PM

Dear Ms. Wright:

Please be advised I have scheduled a Public Safety Committee Meeting for Thursday, November 12, 2026, at 6:00 PM in the City Council Chambers, Room 202, City Hall, 4 Summer Street.
The purpose of the meeting is to discuss the following:

Doc. 32-I: **Motion by Councilor Ferreira to send Flock cameras to the public safety committee for further discussion and recommendation back to council.**

You can also join the meeting remotely by using the link: https://meet.google.com/zai-aeqs-pet

Sincerely,
Michael S. McGonagle
Michael S. McGonagle, Chairperson
Public Safety Committee
Haverhill City Council

MM/lar
c: Public Safety Committee Members, City Council, Mayor Melinda E. Barrett, Christine Lindberg, City Solicitor Lisa Mead, Chief Wayne Tracy, Deputy Chief Meaghan Pare

Attachments

Lori Robertson

From: Erinn Scott <escott@haverhillcommunitytv.org>
Sent: Tuesday, October 27, 2026 9:55 AM
To: Lori Robertson; Matt Belfiore; cbowden; cellson; Lindsay Paris; Dave Shultz; Escott@haverhillcommunitytv.org
Subject: Public Safety Meeting - Thursday, November 11, 2026, at 6PM

Warning! External Email. Exercise caution when opening attachments or clicking on any links. .
Warning! External Email. Exercise caution when opening attachments or clicking on any links.
Good morning!

Here is the link to virtually join the Public Safety Meeting scheduled for Thursday, November 12, 2026, at 6PM.

https://meet.google.com/zai-aeqs-pet

Or open Meet and enter this code: zai-aeqs-pet

Dial in (audio only): (US) +1 423-607-0056 PIN: 890 013 368#

Erinn E. Scott, Office Manager
escott@haverhillcommunitytv.org
HC Media
60 Elm St.
Haverhill, MA 01830
(978) 372-8070 Ex. 202

Mead, Talerman & Costa, LLC
Attorneys at Law

227 Union Street, Suite 606
New Bedford, MA 02740

www.mtclawyers.com

To: **Melinda Barrett, Mayor**

From: **Lisa Mead and Karen Fisher, Special Counsel**

Date: **September 23, 2026**

Re: **Summary of Proposed Automated License Plate Reader Ordinance**

Reference is made to the above-captioned matter. In that respect, following the City Council's August 11th referral, we have worked with Police Chief Wayne Tracy and Deputy Chief Meaghan Pare to prepare a proposed ordinance governing the City's acquisition and use of Automated License Plate Reader ("ALPR") systems and ALPR data. The proposed ordinance is intended to establish the guardrails requested by the City Council while providing the Police Department with sufficient operational flexibility to administer an existing system without requiring Council action for routine, non-material changes.

The City currently does not have an ordinance specifically regulating the use of ALPR technology. The Police Department does, however, have an existing policy governing ALPR use. The proposed ordinance would establish a municipal legal framework that would govern the City's ALPR program going forward and would require the existing Police Department policy to operate consistently with that framework. In particular, the ordinance requires an ALPR Use Policy to be submitted to the City Council for approval before an ALPR system is placed into operational use. Material amendments to an approved policy would likewise require Council approval, while non-material amendments could be handled administratively, subject to documentation and annual reporting.

I. Principal Guardrails Requested by the City Council

The proposed ordinance addresses the Council's requested safeguards in several specific ways:

- Definition and limitations on use. Sections XXX-2 and XXX-7 define ALPR Systems and ALPR Data and establish the purposes for which ALPR technology may be used. Authorized uses include specified law-enforcement and public-safety purposes, such as investigating reported crimes, identifying stolen vehicles, locating missing or endangered persons, and investigating hit-and-run incidents. The ordinance expressly prohibits personal, political, retaliatory, discriminatory, commercial, or otherwise unauthorized uses, as well as generalized surveillance without an authorized governmental purpose.

- City Council approval and oversight. Section XXX-4 requires prior Council approval before the City acquires or materially expands an ALPR System, changes an approved purpose or location, enters into an agreement with a non-City entity concerning an ALPR System or ALPR Data, or participates in a new regional, statewide, national, or commercial ALPR data-sharing arrangement. An ALPR Impact Report and proposed ALPR Use Policy must be provided to the Council and made publicly available at least fourteen days before the Council meeting at which

Newburyport Office
30 Green Street
Newburyport, MA 01950

Millis Office
730 Main Street, Suite 1F
Millis, MA 02054

approval is considered.

- Retention and deletion limits. Section XXX-10 provides that ALPR Data may not be retained longer than reasonably necessary for the specific purpose for which it was collected or generated. The ALPR Use Policy must establish a specific routine retention period and explain the justification for that period. The ordinance also requires automatic deletion when technically feasible and limits preservation beyond the routine retention period to defined circumstances such as a specific investigation, prosecution, litigation hold, or other legally recognized preservation requirement.

- Audit logs and accountability. Section XXX-8 requires, to the extent technically feasible, logging of ALPR queries, including the identity of the user, date and time, search parameters, purpose of the query, and applicable case or incident information. Section XXX-14 requires periodic auditing of each ALPR System at least annually and specifically identifies user access and queries, retention and deletion, hot lists, disclosures, data-sharing, vendor compliance, exigent use, security incidents, complaints, and violations as matters subject to audit.

- Third-party and data-sharing restrictions. Section XXX-11 prohibits automatic, unrestricted, reciprocal, or bulk access to City ALPR Data by governmental or private entities. Sharing is limited to circumstances authorized by law, valid legal process, an authorized law-enforcement or public-safety purpose, or another lawful basis identified in the approved ALPR Use Policy. Section XXX-12 further requires contracts with vendors and third parties to address City control of its data, restrictions on sale and secondary use, security, access controls, audit logs, breach notification, subcontractors, audit rights, and return or destruction of data.

- Council oversight of contracts and data-sharing arrangements. The ordinance specifically requires Council approval before the City enters into an agreement with a non-City entity concerning an ALPR System or ALPR Data and before participating in a new regional, statewide, national, or commercial ALPR data-sharing arrangement. Vendor agreements also may not authorize a material change to the City's approved data-collection, retention, use, or sharing practices without Council approval.

II. Police Department Feedback

i. Operational Flexibility

The Police Department specifically recommended that the ordinance provide flexibility for routine operational changes that do not materially expand the system, so that minor technical or administrative changes would not require repeated Council approval.

Section XXX-4(C) addresses that concern through the definition of a "Routine Operational Change." Such changes may be made by the Police Chief when they are consistent with the existing Council approval, the ALPR Impact Report, and the ALPR Use Policy and do not materially expand or change the system's capabilities, geographic scope, authorized purposes, categories of data collected or retained, access or sharing arrangements, retention periods, or privacy, civil-rights, or civil-liberties implications.

Examples may include routine repairs, replacement, relocation, software or firmware updates, maintenance, and similar operational adjustments that remain within the scope of the City's existing approval. The Police Chief must maintain a written record of these changes, including the basis for determining that a change is non-

material, and must summarize them in the Annual ALPR Report. A change that would otherwise require Council approval cannot be characterized as a Routine Operational Change.

This provision is intended to strike a balance between meaningful Council oversight of material changes and practical administration of the system on a day-to-day basis.

ii. External and Regional ALPR Information

The Police Department also recommended that the ordinance address ALPR information obtained through regional or other outside law-enforcement systems which they indicate is an issue that arises frequently in practice.

Sections XXX-2(C) and XXX-11(F) through (J) address this issue by defining "External ALPR Information" and applying the ordinance's substantive safeguards to information accessed, received, obtained, transmitted, queried, or otherwise used by the Police Department from regional, statewide, national, federal, commercial, or other outside ALPR systems, subject to legally controlling restrictions imposed by the source agency or system.

The ordinance provides that such information may be accessed or used only for purposes authorized by the ordinance, the approved ALPR Use Policy, and applicable law. It may not be obtained or used to circumvent restrictions that would apply if substantially equivalent information had been collected directly by the City. At the same time, the provisions expressly preserve the Police Department's ability to use outside ALPR information for legitimate criminal investigations and other lawful public-safety purposes, provided applicable legal and source-agency restrictions are followed.

This approach is intended to address the Police Department's operational concern without creating a loophole through which restrictions applicable to City-held ALPR Data could be avoided simply because the information originated elsewhere.

iii. Massachusetts Civil Immigration Enforcement Law

The draft also incorporates the recently enacted provisions of M.G.L. c. 147, § 64. The provision took effect September 4, 2026. Among other things, the new law restricts law-enforcement officers and agencies from using state or local resources for, or participating in, federal civil immigration enforcement except in specified circumstances. It also places restrictions on certain inquiries concerning immigration or citizenship status and on providing specified nonpublic information to federal immigration authorities. At the same time, the statute expressly preserves ordinary criminal investigations and coordination with state and federal authorities when those activities are unrelated to federal civil immigration enforcement.

The ordinance incorporates these requirements in several places rather than relying solely on a general reference to state law. For example:

- Section XXX-5(D) requires the ALPR Use Policy expressly to incorporate and comply with M.G.L. c. 147, § 64.

- Section XXX-7 prohibits use of ALPR technology for federal civil immigration enforcement except as permitted or required by law.

- Section XXX-8 restricts queries intended to facilitate federal civil immigration enforcement or determine immigration or citizenship status except where independently authorized by law.

- Section XXX-9 prohibits immigration-related hot-list entries that would facilitate conduct prohibited by the statute.

- Section XXX-11 restricts disclosure of ALPR Data to federal immigration authorities where such disclosure is prohibited by law and applies the same restrictions to External ALPR Information.

- Section XXX-13 requires training concerning the requirements of M.G.L. c. 147, § 64.

- Section XXX-14 requires annual audits to examine queries, disclosures, data-sharing, and other uses involving federal immigration authorities or federal civil immigration enforcement.

- Section XXX-17 confirms that neither the ordinance nor an ALPR Use Policy may be construed to authorize conduct prohibited by state or federal law.

These provisions are intended to provide clear operational direction concerning ALPR technology while preserving the Police Department's ability to conduct ordinary criminal investigations and coordinate with federal authorities on criminal matters unrelated to civil immigration enforcement, consistent with the statutory language.

III. Annual Reporting and Continuing Council Oversight

The ordinance creates an ongoing reporting structure in addition to the Council's approval authority.

Under Section XXX-14, the Police Chief must submit an Annual ALPR Report to the Mayor and City Council by March 1 each year covering the preceding calendar year. The report must include, to the extent legally permissible, information concerning the City's ALPR systems, purposes of use, camera locations, authorized users, queries and alerts, significant uses of External ALPR Information, outside disclosures, complaints and material violations, audit results and corrective actions, system effectiveness, costs and funding sources, and identified privacy, civil-rights, civil-liberties, or disparate-impact concerns.

The ordinance also requires an inventory of existing ALPR systems within 180 days of the ordinance's effective date and requires existing systems to be brought into compliance within 180 days, subject to a Council extension for good cause. This is particularly significant because the City currently has no ordinance regulating ALPR use; the existing Police Department policy would therefore become part of a broader municipal framework rather than remaining the principal source of regulation.

In addition, Council approval would remain necessary for new systems, material expansions or changes, material changes to the approved ALPR Use Policy, new outside data-sharing arrangements, and material contractual changes affecting the City's approved ALPR practices.

IV. Summary

In summary, the proposed ordinance establishes a comprehensive municipal framework for ALPR use where none currently exists. It responds directly to the Council's request for guardrails concerning permissible use, retention, audit logs, third-party sharing, security, training, and Council oversight, while also addressing the

Police Department's practical concerns concerning routine operational changes and the use of ALPR information obtained from outside systems.

The ordinance would preserve the Police Department's ability to use ALPR technology for defined public-safety and law-enforcement purposes while placing those uses within a framework of prior Council approval, documented policies, query and access controls, retention and deletion requirements, contractual safeguards, periodic audits, annual reporting, and continuing Council oversight.

The proposed ordinance is therefore submitted for consideration by the Mayor and City Council. It is our understanding that the Public Safety Subcommittee is also reviewing the matter and will make its recommendation to the full Council.

Should you have any further questions regarding the proposed ordinance, please feel free to contact us.

Document
CITY OF HAVERHILL
In Municipal Council

Ordered:

MUNICIPAL ORDINANCE **CHAPTER XXX**

AN ORDINANCE REGULATING
AUTOMATED LICENSE PLATE READER SYSTEMS

BE IT ORDAINED by the City Council of the City of Haverhill that Part II (General Legislation) of the Code of the City of Haverhill, as amended, being and is hereby further amended by adding the following:

Chapter XXX AUTOMATED LICENSE PLATE READER SYSTEMS

§ XXX-1. Purpose and Intent.

The purpose of this Chapter is to establish procedures and safeguards governing the City's acquisition, deployment, operation, access to, use, retention, disclosure, and oversight of Automated License Plate Reader Systems ("ALPR Systems") and ALPR Data.

The City recognizes that ALPR Systems may serve legitimate public-safety and law-enforcement purposes. The City also recognizes that ALPR Systems may collect information concerning individuals and vehicles that are not suspected of unlawful conduct and may permit the reconstruction of an individual's movements over time.

This Chapter is intended to:

A. Permit the use of ALPR Systems for legitimate and authorized municipal and law-enforcement purposes;

B. Protect individual privacy and civil rights and liberties;

C. Establish City Council oversight before the City acquires or materially expands the use of an ALPR System;

D. Establish reasonable limitations on the collection, access, use, retention, and sharing of ALPR Data;

E. Require appropriate training, security, auditing, and accountability; and

F. Promote transparency concerning the City's use of ALPR Systems.

§ XXX-2. Definitions.

For purposes of this Chapter, the following terms shall have the meanings set forth below:

A. "ALPR System" or "Automated License Plate Reader System" means a system of cameras, software, databases, or associated technology that uses optical character recognition or other automated means to detect, capture, record, interpret, or generate information from a vehicle license plate or information associated with a detected vehicle.

An ALPR System includes fixed, mobile, vehicle-mounted, or portable systems and any associated software, databases, analytical tools, alert systems, or services used to collect, store, search, analyze, or share ALPR Data.

B. "ALPR Data" means information collected, captured, recorded, retained, processed, analyzed, generated, or derived through an ALPR System, including, but not limited to, license-plate numbers, vehicle images, vehicle characteristics, date and time information, geographic or location information, camera location, metadata, alerts, hot-list information, and information associated with or derived from such information.

C. "External ALPR Information" means ALPR information or data collected, maintained, generated, or made available by a regional, statewide, national, federal, commercial, or other ALPR system or database that is not owned or operated by the City, but that is accessed, received, obtained, transmitted, queried, or otherwise used by the Police Department or an Authorized User.

D. "Authorized User" means the Police Chief or a City police officer or employee specifically authorized by the Police Chief under an approved ALPR Use Policy to operate, access, query, maintain, administer, or otherwise use an ALPR System or ALPR Data.

E. "ALPR Use Policy" means a written policy governing the City's use of an ALPR System, approved pursuant to this Chapter.

F. "ALPR Impact Report" means a written report evaluating the City's proposed acquisition, use, or material modification of an ALPR System and addressing the requirements of § XXX-4.

G. "Query" means a search, retrieval, review, comparison, analysis, export, or other intentional access to ALPR Data, including the use of search functions or analytical tools to identify, locate, associate, or derive information concerning a vehicle or license plate.

H. "Hot List" means a list of license-plate numbers or vehicle identifiers entered into or made available to an ALPR System for the purpose of generating an automated alert when the system detects a corresponding plate or vehicle.

I. "Exigent Circumstances" means circumstances in which the Police Chief or an Authorized User designated by the Police Chief reasonably determines that an emergency involving an imminent threat of death, serious physical injury, or other substantial harm requires immediate use of an ALPR System or access to ALPR Data and makes compliance with the ordinary approval process impracticable.

§ XXX-3. Scope.

A. This Chapter applies to every ALPR System acquired, operated, maintained, accessed, or used by or on behalf of the City, regardless of whether the system is purchased, leased, licensed, borrowed, provided through a subscription or service agreement, accepted as a donation, or otherwise provided to the City.

B. This Chapter applies to ALPR Data collected or maintained by the City or by a third party on the City's behalf.

C. The Police Department shall be the City's department responsible for the operation and administration of ALPR Systems. No City department, office, board, commission, agency, or other municipal entity, other than the Police Department acting through the Police Chief and Authorized Users, shall acquire, deploy, operate, materially modify, or obtain access to an ALPR System or ALPR Data except as expressly authorized by this Chapter and the applicable ALPR Use Policy.

D. Nothing in this Chapter shall be construed to regulate an ALPR System operated independently by a private person or entity, except to the extent the system or its data is provided to, operated on behalf of, or used pursuant to an agreement with the City.

E. Nothing in this Chapter shall prohibit the City from using ordinary traffic-monitoring, parking, or other camera systems that do not function as an ALPR System and do not collect ALPR Data, except to the extent such systems are subsequently configured or used as an ALPR System.

§ XXX-4. City Council Approval; ALPR Impact Report.

A. Except as otherwise provided in this Chapter, the City shall not seek funding for, acquire, purchase, lease, license, subscribe to, borrow, accept as a donation, accept on a trial or pilot basis, or otherwise obtain or use an ALPR System without prior approval of the City Council, except as provided in § XXX-15.

B. City Council approval shall also be required before the City:

1. Uses an existing ALPR System for a purpose, in a manner, or at a location not previously approved by the City Council;
2. Materially expands or changes an existing ALPR System, including a material expansion of the number or location of ALPR cameras;

3. Enters into an agreement with a non-City entity concerning the acquisition, use, operation, access to, or sharing of an ALPR System or ALPR Data; or
4. Participates in a new regional, statewide, national, or commercial ALPR data-sharing arrangement.

C. Notwithstanding subsection B, prior City Council approval shall not be required for a Routine Operational Change. A "Routine Operational Change" means a nonmaterial operational, technical, administrative, maintenance, or configuration change that the Police Chief determines is consistent with this Chapter, the approved ALPR Impact Report, and the approved ALPR Use Policy and that does not materially expand or change the system's capabilities, geographic scope, authorized purposes, categories of ALPR Data collected or retained, access or sharing arrangements, retention periods, or privacy, civil-rights, or civil-liberties implications.

A Routine Operational Change may include, as appropriate, routine replacement, repair, relocation, configuration, software or firmware updates, maintenance, or other operational adjustments that remain within the scope of the City's existing Council approval and do not materially expand the City's use of the ALPR System.

The Police Chief shall maintain a written record of Routine Operational Changes, including the date, nature, and basis for the determination that the change was nonmaterial, and shall include a summary of such changes in the Annual ALPR Report. The Police Chief shall not designate a change as a Routine Operational Change if the change would otherwise require City Council approval under this Chapter.

D. The Police Chief seeking approval shall submit an ALPR Impact Report to the Mayor, City Solicitor and to the City Council. The Impact Report shall include, at a minimum:

1. A description of the proposed ALPR System and how it operates;
2. The specific municipal and law-enforcement purposes for which the ALPR System will be used;
3. The proposed number and locations of ALPR cameras or other collection points;
4. The categories of ALPR Data that will be collected or generated;
5. The proposed retention and deletion periods for ALPR Data;
6. The categories of persons authorized to access the ALPR System and ALPR Data;
7. The proposed procedures governing queries, alerts, and searches;
8. Proposed security safeguards;
9. The identity of the proposed vendor or other third party and the nature of the contractual relationship;
10. Proposed data-sharing arrangements;
11. Initial and anticipated ongoing costs and funding sources;
12. Privacy, civil-rights, and civil-liberties considerations;
13. Proposed training, auditing, and oversight procedures;
14. The proposed ALPR Use Policy; and

15. Any reasonably available alternatives considered and, where applicable, an explanation of why the proposed ALPR System is reasonably necessary to accomplish the identified purpose.

E. The ALPR Impact Report and proposed ALPR Use Policy shall be made publicly available on the City's website at least fourteen (14) calendar days before the City Council meeting at which approval is considered.

§ XXX-5. ALPR Use Policy.

A. Before an ALPR System is activated or placed into operational use, the Police Chief shall submit an ALPR Use Policy to the Mayor and City Solicitor for review and then to the City Council for approval, subject to any applicable collective bargaining obligations under M.G.L. c. 150E.

B. The ALPR Use Policy shall specify, as applicable:

1. The purposes for which the ALPR System may be used;
2. Authorized and prohibited uses;
3. The information that may be collected and retained;
4. Authorized users and access procedures;
5. Procedures governing queries and searches;
6. Requirements for documenting the purpose of a query;
7. Procedures governing automated alerts and hot lists;
8. Data-security safeguards;
9. Routine retention and deletion periods;
10. Procedures for preserving ALPR Data when legally required;
11. Procedures governing disclosure and sharing of ALPR Data;
12. Required training;
13. Auditing and oversight requirements;
14. Procedures for investigating misuse or unauthorized access; and
15. Consequences for violations.

C. The ALPR Use Policy shall be publicly available on the City's website, except for information lawfully exempt from disclosure.

D. The ALPR Use Policy shall not authorize conduct prohibited by this Chapter or applicable federal or Massachusetts law. The ALPR Use Policy shall expressly incorporate and require compliance with M.G.L. c. 147, § 64, as amended from time to time, including all restrictions governing immigration or citizenship status inquiries, the use of state or local resources for federal civil immigration enforcement, disclosure of nonpublic personal information, custody status and advance notice of release or court appearances, and the use, detention, transportation, or other handling of individuals for purposes of federal civil immigration enforcement. Nothing in an ALPR Use Policy shall authorize an officer or employee to access, use, disclose, transmit, or otherwise process ALPR Data in a manner that would violate M.G.L. c. 147, § 64.

E. Any material amendment to an approved ALPR Use Policy shall require City Council approval before implementation. Nonmaterial amendments to an approved ALPR Use Policy that do not materially expand or change the City's approved purposes, data collection, retention, access, sharing, geographic scope, or privacy, civil-rights, or civil-liberties implications may be approved by the Police Chief, subject to review by the Mayor, and shall be documented and summarized in the Annual ALPR Report.

F. If an ALPR Use Policy conflicts with this Chapter, this Chapter shall govern.

§ XXX-6. Standards for Approval and Use.

In considering an ALPR Impact Report or ALPR Use Policy, the City Council shall consider:

A. The identified municipal or public-safety purpose;

B. The expected public-safety or operational benefits and financial and administrative costs;

C. Reasonably available less-intrusive alternatives;

D. The potential effects on privacy, civil rights, and civil liberties;

E. The proposed safeguards against unauthorized, inappropriate, or discriminatory use;

F. The proposed retention period and data-sharing arrangements;

G. The proposed locations of ALPR cameras and whether those locations are reasonably related to the identified purpose; and

H. Whether the proposed ALPR System is reasonably designed to avoid discriminatory or viewpoint-based use and unreasonable disparate impacts.

The City Council may approve, disapprove, or require modifications to an ALPR Impact Report or ALPR Use Policy.

§ XXX-7. Authorized and Prohibited Uses.

A. An ALPR System and ALPR Data may be used only for purposes identified in the applicable approved ALPR Use Policy and consistent with applicable federal and Massachusetts law, including M.G.L. c. 147, § 64.

B. Authorized purposes may include:

1. Investigation of reported crimes or violations of law;
2. Identification or recovery of stolen vehicles or stolen license plates;
3. Identification or location of missing persons or endangered persons;
4. Investigation of hit-and-run incidents;

5. Investigation of matters involving a specific and articulable public-safety concern;
6. Other legitimate law-enforcement or public-safety purposes specifically identified in the approved ALPR Use Policy; and
7. Other municipal purposes expressly approved by the City Council.

C. No person acting on behalf of the City shall intentionally use an ALPR System or ALPR Data:

1. To monitor, track, or investigate a person solely because the person is engaged in lawful constitutionally protected activity;
2. For personal, political, retaliatory, discriminatory, or commercial purposes;
3. To harass or intimidate any person;
4. To establish a pattern of an individual's movements or associations except as reasonably necessary for an authorized governmental purpose;
5. To conduct generalized surveillance of individuals without an authorized governmental purpose;
6. To conduct or participate in federal civil immigration enforcement except as expressly permitted or required by applicable law, including M.G.L. c. 147, § 64, as amended from time to time.
7. To sell ALPR Data or use ALPR Data for advertising or unrelated commercial purposes; or
8. For any purpose prohibited by applicable law.

D. Nothing in this Chapter authorizes a stop, detention, search, seizure, arrest, inspection, or other governmental action that would otherwise require legal justification under federal or Massachusetts law.

E. Nothing in this Chapter shall be construed to authorize the Police Department or any Authorized User to use an ALPR System or ALPR Data for federal civil immigration enforcement in violation of M.G.L. c. 147, § 64. An ALPR System shall not be used as a means of circumventing any limitation imposed by that section on immigration or citizenship status inquiries, information sharing, detention, transportation, or other assistance to federal immigration authorities.

§ XXX-8. ALPR Queries and Automated Alerts.

A. Access to an ALPR System or ALPR Data shall be limited to Authorized Users.

B. An Authorized User shall access ALPR Data only for a purpose authorized by this Chapter and the applicable ALPR Use Policy.

C. To the extent technically feasible, each Query shall be logged and shall identify:

1. The Authorized User;
2. The date and time of the Query;
3. The search parameters;

4. The purpose of the Query; and
5. A case number, incident number, report number, or other identifying information when applicable.

D. An Authorized User shall not conduct a Query for the purpose of determining the whereabouts or movements of a person unless the Query is reasonably related to an authorized governmental purpose and permitted by the applicable ALPR Use Policy.

E. An Authorized User shall not conduct, initiate, or direct a Query for the purpose of identifying, locating, monitoring, tracking, or investigating an individual for federal civil immigration enforcement, except as expressly permitted or required by federal or Massachusetts law. A Query shall not be conducted for the purpose of determining an individual's immigration or citizenship status unless such inquiry is independently authorized by M.G.L. c. 147, § 64 or other applicable law, as amended from time to time.

F. An automated ALPR alert or match shall not, standing alone, establish reasonable suspicion, probable cause, or any other legal justification when such justification is otherwise required by law.

G. Before taking enforcement or other consequential governmental action based substantially on an ALPR alert or match, an Authorized User shall, when reasonably practicable, independently verify the accuracy and reliability of the alert or match and take any additional steps required by law or the applicable ALPR Use Policy.

H. An ALPR alert shall not by itself constitute confirmation that a vehicle or license plate is stolen, wanted, involved in criminal activity, or otherwise subject to enforcement action.

§ XXX-9. Hot Lists.

A. Hot Lists shall be limited to categories expressly authorized by the applicable ALPR Use Policy.

B. The ALPR Use Policy shall establish procedures governing the creation, approval, maintenance, review, and removal of Hot List entries.

C. To the extent technically feasible, Hot List entries shall include information identifying the source of the entry, the date the entry was created, the reason for the entry, and the date on which the entry must be reviewed or removed.

D. An Authorized User shall not create or add a license-plate number to a Hot List for a personal, political, retaliatory, discriminatory, or otherwise unauthorized purpose.

E. No Hot List may be created, maintained, or used for the purpose of identifying, locating, monitoring, tracking, or facilitating enforcement against individuals based solely on actual or perceived citizenship or immigration status. No Hot List may be created or used for the purpose of facilitating federal civil immigration enforcement except to the extent expressly permitted or

required by applicable law. The Police Department shall not enter an immigration detainer, administrative immigration warrant, notice to appear, removal order, or other civil immigration process into an ALPR System as a Hot List entry for the purpose of generating an alert that would facilitate conduct prohibited by M.G.L. c. 147, § 64.

F. Invalid, expired, or inaccurate Hot List entries shall be removed as soon as reasonably practicable.

§ XXX-10. Retention, Preservation, and Deletion.

A. Retention. ALPR Data shall not be retained longer than reasonably necessary to accomplish the specific purpose for which it was collected or generated. The ALPR Use Policy shall establish a specific routine retention period and explain the justification for that period.

B. Deletion. The Police Department shall configure an ALPR System, to the extent technically feasible, to automatically delete ALPR Data upon expiration of the applicable retention period.

C. Preservation. ALPR Data may be preserved beyond the routine retention period when reasonably necessary for a specific investigation, prosecution, judicial proceeding, litigation hold, or other legally recognized preservation requirement.

D. Preservation Limits. Preservation shall be limited to the ALPR Data reasonably necessary for the applicable purpose.

E. Termination of Preservation. ALPR Data preserved pursuant to this section shall be deleted or otherwise disposed of when the applicable preservation requirement no longer exists, unless another lawful basis for continued retention exists.

§ XXX-11. Sharing and Disclosure of ALPR Data.

A. The City shall not establish automatic, unrestricted, reciprocal, or bulk access to ALPR Data by another governmental or private entity.

B. ALPR Data may be shared or disclosed only when authorized by:

1. Applicable federal or Massachusetts law;
2. A valid warrant, court order, subpoena, or other lawful legal process;
3. An authorized law-enforcement or public-safety purpose permitted by the applicable ALPR Use Policy and consistent with any applicable legal, contractual, source-agency, and constitutional restrictions; or
4. Another lawful basis expressly identified in the approved ALPR Use Policy.

C. Nothing in this Chapter shall be construed to authorize the Police Department or any Authorized User to knowingly provide ALPR Data to a federal immigration authority when such disclosure is prohibited by M.G.L. c. 147, § 64.

D. The Police Department shall document disclosures of ALPR Data to outside entities to the extent reasonably practicable and legally permissible.

E. Any regional, statewide, national, or commercial ALPR data-sharing arrangement shall be specifically identified in the applicable ALPR Use Policy and shall require City Council approval before the City participates in the arrangement.

F. External ALPR Information accessed, received, obtained, transmitted, queried, or otherwise used by the Police Department or an Authorized User shall, to the extent permitted by law and subject to any legally controlling restrictions imposed by the source agency or system, be subject to the same requirements and restrictions established by this Chapter for ALPR Data, including restrictions governing authorized purposes, access, queries, use, disclosure, retention, auditing, and federal civil immigration enforcement.

G. The Police Department and Authorized Users may access, query, receive, or use External ALPR Information only for a purpose authorized by this Chapter, the applicable ALPR Use Policy, and applicable federal and Massachusetts law. External ALPR Information shall not be used for a purpose that would be prohibited if substantially equivalent information had been collected directly by the City.

H. The Police Department and Authorized Users shall not access, query, receive, obtain, or use External ALPR Information through a regional, statewide, national, federal, commercial, or other outside system for the purpose of circumventing any restriction imposed by this Chapter or Massachusetts law. Without limiting the foregoing, External ALPR Information shall not be accessed, queried, received, obtained, or used for the purpose of conducting or participating in federal civil immigration enforcement when such conduct is prohibited by M.G.L. c. 147, § 64.

I. Nothing in this section shall prohibit the Police Department or an Authorized User from accessing or using External ALPR Information for a legitimate criminal investigation or other lawful public-safety purpose, provided that the access and use comply with this Chapter, the applicable ALPR Use Policy, applicable law, and any legally binding restrictions governing the source information.

J. Nothing in this section shall prohibit the Police Department from accessing, receiving, using, disclosing, or producing ALPR Data or External ALPR Information when required by applicable law, valid legal process, court order, litigation hold, or other legally enforceable obligation.

§ XXX-12. Vendors and Third Parties.

A. Any agreement concerning an ALPR System or ALPR Data shall require compliance with this Chapter and the applicable ALPR Use Policy and shall address:

1. City control over City ALPR Data;
2. Prohibition on unauthorized sale, disclosure, or secondary use of City ALPR Data;
3. Prohibition on using City ALPR Data for advertising or unrelated commercial purposes;
4. Data-security requirements;

5. Individual user credentials and access controls;
6. Audit logs;
7. Prompt notification of unauthorized access, disclosure, loss, or compromise;
8. Compliance by subcontractors;
9. The City's audit and inspection rights;
10. Return or secure destruction of City ALPR Data upon termination, subject to lawful preservation requirements; and
11. Procedures governing material changes to data collection, retention, use, analysis, or sharing.

B. No City agreement shall authorize a vendor to make a material change to the City's approved ALPR data-collection, retention, use, or sharing practices without City Council approval.

§ XXX-13. Data Security and Training.

A. The Police Department shall employ reasonable administrative, technical, and physical safeguards appropriate to the nature of ALPR Data.

B. Authorized Users shall have individual credentials. Shared credentials shall be prohibited.

C. Access to ALPR Systems shall be limited according to the ALPR Use Policy and shall be periodically reviewed by the Police Chief or the Police Chief's designee.

D. No person shall access an ALPR System or ALPR Data without completing training required by this Chapter and the applicable ALPR Use Policy.

E. The Police Chief shall establish procedures to ensure that Authorized Users receive training concerning the requirements of M.G.L. c. 147, § 64 as they relate to ALPR Systems and ALPR Data, including restrictions concerning federal civil immigration enforcement, immigration or citizenship status, nonpublic personal information, information sharing, custody status, advance release information, and civil immigration process.

F. Training for Authorized Users shall also address this Chapter, the applicable ALPR Use Policy, lawful use, privacy and civil-rights protections, data security, query requirements, retention, disclosure, and consequences of misuse.

§ XXX-14. Audits and Annual Report.

A. The Police Chief shall establish procedures for periodic auditing of ALPR System use. Each ALPR System shall be audited at least annually, unless the applicable ALPR Use Policy requires more frequent auditing.

B. Audits shall examine, as appropriate:

1. User access and Queries;
2. Compliance with retention and deletion requirements;

3. Hot List entries and alerts;
4. Disclosures and data-sharing;
5. Any Queries, alerts, disclosures, data-sharing arrangements, or other uses involving federal immigration authorities or federal civil immigration enforcement, including documentation demonstrating compliance with M.G.L. c. 147, § 64;
6. Access to, queries of, receipt of, use of, disclosure of, or other processing of External ALPR Information, including compliance with applicable restrictions imposed by the source agency or system;
7. Vendor compliance;
8. Exigent use;
9. Security incidents; and
10. Complaints and violations.

C. On or before March 1 of each year, the Police Chief shall submit an Annual ALPR Report to the Mayor and City Council covering the City's use of ALPR Systems during the preceding calendar year.

D. The Annual ALPR Report shall include, to the extent disclosure is lawful:

1. A description of each ALPR System operated or used by the City;
2. The general purposes for which each system was used;
3. The number and general locations of ALPR cameras;
4. The number of Authorized Users;
5. The number of Queries, alerts, and significant uses, where reasonably available;
6. The number and general categories of queries of or significant uses of External ALPR Information;
7. The number and general categories of disclosures of ALPR Data to outside entities;
8. The legal basis and general purpose for significant disclosures, where disclosure is lawful;
9. Complaints and material violations;
10. Audit results and corrective actions;
11. The effectiveness of each ALPR System in achieving its approved purposes;
12. Annual costs and funding sources; and
13. Any identified privacy, civil-rights, civil-liberties, or disparate-impact concerns.

§ XXX-15. Exigent Circumstances.

A. The Police Chief, or an Authorized User designated by the Police Chief, may temporarily use an ALPR System or ALPR Data without prior City Council approval in Exigent Circumstances when immediate action is reasonably necessary.

B. Exigent use shall be limited to the circumstances requiring immediate action and shall not be used to circumvent the ordinary approval requirements of this Chapter.

C. Exigent use shall not be undertaken for the purpose of monitoring lawful protest, religious activity, political activity, or other constitutionally protected activity.

D. The Police Chief shall document the circumstances giving rise to the exigent use and shall provide a written report to the Mayor and City Council within ninety (90) days after the circumstances have ended.

E. If the City intends to continue using or acquiring the ALPR System after the exigency has ended, the City shall comply with the ordinary approval requirements of this Chapter.

F. Nothing in this section authorizes the purchase, lease, subscription to, or permanent acquisition of an ALPR System without the approvals otherwise required by this Chapter, except to the extent necessary to address the exigent circumstance.

§ XXX-16. Existing ALPR Systems.

A. Within one hundred eighty (180) days after the effective date of this Chapter, the Police Chief shall provide the Mayor and City Council with an inventory of all ALPR Systems currently operated, accessed, leased, licensed, or otherwise used by or on behalf of the Police Department.

B. The inventory shall identify, to the extent applicable:

1. Each ALPR System and its deployment locations;
2. The vendor;
3. Applicable agreements;
4. Data-sharing arrangements;
5. Regional, statewide, national, federal, commercial, or other outside ALPR systems or databases accessed by the Police Department or Authorized Users, including the nature of the City's access and any applicable data-sharing or user agreements;
6. Retention practices;
7. Existing policies and training requirements;
8. Authorized Users; and
9. A plan for bringing each system into compliance with this Chapter.

C. Existing ALPR Systems shall be brought into compliance with this Chapter within one hundred eighty (180) days after the effective date, unless the City Council grants an extension for good cause.

§ XXX-17. Construction; Compliance with Law.

A. This Chapter establishes municipal requirements governing the City's acquisition and use of ALPR Systems and ALPR Data.

B. Nothing in this Chapter shall be construed to authorize conduct prohibited by federal or Massachusetts law.

C. Nothing in this Chapter shall be construed to require the City to violate a valid legal obligation, judicial order, or other requirement of law.

D. Nothing in this Chapter shall diminish any privacy, civil-rights, civil-liberties, public-records, or other protection otherwise available under federal or Massachusetts law.

E. Nothing in this Chapter shall be construed to require or permit the City, the Police Department, the Police Chief, an Authorized User, or any vendor or third party acting on behalf of the City to provide information or other assistance to a federal immigration authority in contravention of M.G.L. c. 147, § 64, other applicable law, or the written policy of the Police Department.

F. Nothing in this Chapter shall be construed to regulate criminal procedure, establish an evidentiary rule, or create a private right of action unless otherwise authorized by law.

G. If M.G.L. c. 147, § 64, or any other applicable law is amended after adoption of this Chapter, the City shall administer this Chapter in a manner consistent with the amended law to the extent required by law. Nothing in this Chapter shall be construed to expand or restrict a statutory exception beyond what applicable law permits.

H. If any provision of an approved ALPR Use Policy conflicts with this Chapter or applicable law, the provision that imposes the greater legal restriction on the City's use of ALPR Systems shall govern to the extent permitted by law.

§ XXX-18. Administration and Enforcement.

A. The Mayor shall oversee implementation of this Chapter and shall coordinate with the Police Chief regarding compliance.

B. The Police Chief shall be responsible for administration of the City's ALPR program, compliance within the Police Department, and implementation of applicable ALPR Use Policies.

C. The Police Chief shall ensure that access to ALPR Systems and ALPR Data is limited to Authorized Users and that Authorized Users comply with this Chapter and the applicable ALPR Use Policy.

D. Violations by City personnel may result in appropriate administrative or disciplinary action consistent with applicable law, collective-bargaining agreements, and City policy.

E. Vendor or contractor violations shall be addressed through applicable contractual remedies and other remedies available by law.

F. Nothing in this section creates a private right of action or monetary remedy not otherwise authorized by law.

§ XXX-19. Severability.

If any provision of this Chapter or its application to any person or circumstance is held invalid, the invalidity shall not affect the remaining provisions or applications, which shall remain in full force and effect.

5.1

MELINDA E. BARRETT
MAYOR

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MASSACHUSETTS

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AUG 7 AM 10:44
HAVCITYCLERK

August 7, 2026

To: City Council President Timothy J. Jordan and Members of the Haverhill City Council

From: Mayor Melinda E. Barrett

Re: Flock license plate reader cameras and software

Dear Mr. President and Members of the City Council:

I respectfully request to present Acting Deputy Chief Meaghan Paré to discuss Flock cameras and software utilized by the Haverhill Police Department for license plate monitoring.

Very truly yours,

Melinda E. Barrett

Melinda E. Barrett
Mayor

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Pages 24 to 29 of this packet were a marketing guide by Flock Safety, "Flock Technology: Council & Community Readiness Guide." Flock lists the guide as private and not for sharing, so it is not reproduced here.

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Flock Camera System

Information Collected and Use by the Haverhill Police Department

The Police Department utilizes Flock cameras as an investigative and public safety tool. Flock cameras are designed to capture and analyze vehicle-related information, rather than information identifying a person's face or other biometric characteristics.

When a vehicle passes a Flock camera, the system may capture information such as the vehicle's license plate number, state of issuance, vehicle make, model, color, and other observable vehicle characteristics. Depending on the camera system and available information, additional characteristics may include the direction of travel and other descriptors that can assist an officer in locating or identifying a vehicle of interest.

Flock is not a facial recognition system. The cameras do not identify a person's face, create a facial-recognition profile, or provide an officer with the identity of the person driving or occupying a vehicle. The system is focused on the vehicle and its observable characteristics.

It is also important to distinguish between information captured by Flock and information contained within law-enforcement databases. Flock does not, by itself, provide the officer with the registered owner's personal information simply from capturing a license plate. When an officer has a legitimate law-enforcement reason to identify the registered owner of a vehicle, the license plate information can be used to conduct an authorized inquiry through the appropriate law-enforcement information systems, including CJIS-accessible systems, in accordance with applicable rules, policies, and user permissions.

The resulting database inquiry may provide information associated with the vehicle registration, including the registered owner, when the officer is authorized to obtain that information. Access to this information is subject to the requirements governing CJIS and other applicable law-enforcement databases.

Auditing and Accountability

All searches conducted within the Flock system create an audit trail. This allows the Department to review system activity and determine who accessed the system and conducted searches.

The Department conducts periodic random audits of Flock activity to ensure that searches are being conducted for legitimate law-enforcement purposes and in accordance with Department policy. In addition, the Department conducts quarterly checks/reviews of system usage as an additional safeguard.

These measures are intended to ensure that Flock is used appropriately as an investigative tool, that access is limited to authorized personnel and legitimate law-enforcement purposes, and that the Department maintains accountability and oversight regarding the information available through the system.

I am accessing a restricted information system for authorized use only, and in compliance with Flock's Privacy Policy and CJIS Security Policy. I agree to use the system in accordance with the laws of my jurisdiction and will not access data from CA, CO, CT, IL, NJ, OR, VT, WA for immigration enforcement or from CA, CO, CT, HI, IL, MA, MD, ME, NJ, NM, NV, NY, OR, RI, VT, WA, D.C. for reproductive care. I consent to be monitored, recorded, and audited by Flock and my agency. Unauthorized/improper use may lead to disciplinary action and criminal and/or civil legal penalties. My agency is responsible for the security of my devices and for the authorized use and privacy of any data.

Accept and Continue

Packet handed out @ mtg 8.11.26

Flock Safety Technology

Purpose, Safeguards, Accountability & Community Questions

PURPOSE

The Haverhill Police Department utilizes Flock Safety technology as an investigative tool to assist officers and detectives in solving crimes, locating vehicles associated with investigations, developing investigative leads, and protecting the community.

Flock is not a replacement for police investigation, probable cause, witness interviews, physical evidence, or other traditional investigative techniques. It is one additional source of information available to trained and authorized personnel.

The Department believes it is important that City Councilors and the public understand what Flock does, what it does not do, who can use it, how its use is monitored, and what safeguards are in place.

WHAT FLOCK DOES

- Captures images of vehicles and license plates that pass designated cameras in areas where there is no reasonable expectation of privacy.
- Records information associated with the vehicle observation, including:
    - License plate image
    - Vehicle image
    - Vehicle characteristics
    - Date and time
    - Camera location
- Allows authorized investigators to conduct retrospective searches when investigating a crime that has already occurred.
- Can help investigators determine whether a particular vehicle was in an area during a relevant period of time.

- Can help investigators develop leads when a witness, victim, or other evidence provides a partial or complete vehicle description.
- Can help establish investigative timelines and identify connections between vehicles, locations, and incidents.
- Can provide information that can be evaluated alongside:
    - Witness statements
    - City surveillance cameras
    - Physical evidence
    - Digital evidence
    - 911 calls
    - Officer observations
    - Other investigative information
- Can assist with serious offenses such as shootings, armed robberies, firearms offenses, major thefts, fraud, and home invasions.
- Can also assist with everyday police investigations such as shoplifting, leaving the scene of crashes, missing persons, stolen vehicles, warrants, criminal harassment, stalking, and property crimes.
- Can provide investigators with an additional investigative lead when traditional information is limited.

Flock's own current policy states that its ALPR technology captures vehicle and license-plate information, not facial recognition or demographic information.

WHAT FLOCK DOES NOT DO

Flock does NOT use facial recognition.

The system is designed to identify and provide information about vehicles, not to identify a person by his or her face.

Flock does NOT tell officers who a person is.

The system does not automatically provide an individual's name, home address, Social Security number, criminal history, or other DMV personal information.

It provides vehicle-related investigative information. Investigators must use lawful investigative methods to determine who is associated with a vehicle.

Flock does NOT predict who will commit a crime.

It is not a predictive-policing system and does not assign a person a "risk score" or predict future criminal behavior.

Flock does NOT give officers unlimited access to search anyone they want.

Access is restricted to authorized users. Searches are associated with individual user accounts and are recorded for auditing and review.

Flock is NOT intended for casual or personal searches.

The technology is intended for legitimate public-safety and investigative purposes. Personal use, harassment, intimidation, and searches unrelated to legitimate law-enforcement purposes are prohibited.

Flock does NOT replace an investigation.

A Flock hit or vehicle observation is an investigative lead, not automatically proof that someone committed a crime.

Investigators must corroborate information and evaluate it with the totality of the evidence.

WHO CAN USE FLOCK?

- Flock access is restricted to authorized Haverhill Police Department personnel.
- Users must be appropriately trained before being provided access.
- Users are required to understand:
    - The Department's Flock policies
    - Acceptable-use requirements
    - Search requirements

    - Privacy protections
    - Audit procedures
    - Appropriate investigative purposes
- Each authorized user accesses the system through an individual account.
- Users are not permitted to share accounts or credentials.
- Flock searches are associated with the individual user who conducted the search.
- All users are required to comply with Haverhill Police Department policies and procedures, as well as applicable federal and Massachusetts law.
- Access can be restricted or removed when an individual no longer has a legitimate need for access or fails to comply with Department requirements.

Flock's current law-enforcement access requirements similarly describe role-based access, individual authentication, purpose-based searches, and automatic logging of searches.

ACCOUNTABILITY & AUDITING

One of the most important safeguards is that **Flock use is not anonymous.**

Every search creates an audit trail.

The system records information associated with the search, including:

- **The individual user**
- **Date and time**
- **Purpose of the search**
- **Search criteria**

This allows authorized supervisors to determine who accessed the system, when it was accessed, and why it was searched.

This creates individual accountability.

An officer cannot simply conduct a Flock search with no record of the activity.

The system creates a record that can be reviewed for compliance with Department policy.

The technology does not just provide investigative capabilityit also creates an accountability trail for the people using it.

DATA RETENTION

Routine Flock data

The standard Flock retention period for ALPR data is **30 days**, after which the data is automatically deleted under the standard retention configuration.

This means Flock is not intended to create a permanent historical database of every vehicle that has traveled through Haverhill.

Investigative evidence

If information is identified as relevant to an active investigation, investigators can preserve it as evidence in accordance with Department policy and applicable records/evidence requirements.

Once information is appropriately preserved as investigative evidence, it is no longer subject to the ordinary 30-day deletion cycle in the same manner as routine, unpreserved data.

Audit records

Audit information associated with system access provides an accountability record showing who conducted searches and when. HPD maintains these audit records as part of its system oversight and accountability requirements.

Flock's current policy confirms that searches are retained for auditing and include the user, date, time, purpose, and search criteria.

DATA SHARING — AN IMPORTANT DISTINCTION

Haverhill controls its participation in Flock sharing.

Flock's system does not automatically make every Haverhill camera or every Haverhill record available to every law-enforcement agency.

Flock states that agency-to-agency sharing is optional and controlled by the participating customer agency.

Haverhill Police Department's current practice

Under HPD's current configuration and policy, Haverhill's Flock information is shared only through authorized Massachusetts law-enforcement partnerships with agencies that participate in the sharing network with Haverhill.

HPD does not provide general or automatic access to Haverhill's Flock data to federal law-enforcement agencies.

This is an important distinction:

There is no automatic "federal back door" into Haverhill's Flock system.

Any request for information outside the Department's authorized sharing arrangements must be handled through the applicable legal and Department procedures.

Flock's current public materials state that customers control whether and with whom their data is shared and that sharing is not automatic.

WHAT HAPPENS WHEN AN OFFICER GETS A FLOCK "HIT"?

A Flock result should be understood as an **investigative lead**, not a determination that someone committed a crime.

For example:

A vehicle is reported leaving the scene of a crime.

↓

Investigators obtain a description or partial plate.

↓

Flock identifies a vehicle matching the investigative criteria.

↓

Investigators evaluate the Flock information.

↓

Investigators corroborate the information through other evidence.

↓

Investigators determine what additional investigative steps are appropriate.

The technology assists the investigation; the officer or detective remains responsible for evaluating the evidence and making lawful investigative decisions.

QUESTIONS COUNCILORS ARE LIKELY TO HEAR FROM CONSTITUENTS

"Is the police department tracking everyone?"

No.

Flock provides vehicle observations from designated cameras. It is an investigative resource used by authorized personnel for legitimate law-enforcement purposes.

The technology is not designed to identify people by face, and it is not a predictive-policing system.

"Can an officer look up my car just because they are curious?"

No.

Flock searches must have a legitimate investigative or public-safety purpose and are subject to Department policy.

Furthermore, searches are logged to the individual user, creating an audit trail that can be reviewed.

"Does Flock use facial recognition?"

No.

The ALPR system focuses on vehicle and license-plate information and does not use facial recognition to identify individuals.

"Does Flock know where I live?"

Not from the Flock camera itself.

The system provides vehicle-related information such as the vehicle image, plate, time, date, and camera location. It does not independently provide a person's name or home address.

"Does Flock keep everything forever?"

No.

Routine ALPR data is retained for the standard **30-day period** and then automatically deleted, subject to applicable law and the customer's configuration.

Information that becomes relevant to an investigation can be preserved as evidence under applicable Department procedures.

"Can federal agencies automatically access Haverhill's information?"

No — not automatically.

Haverhill controls its participation in data-sharing arrangements. Under HPD's current configuration and policy, Haverhill's Flock information is shared through authorized Massachusetts law-enforcement partnerships rather than providing automatic federal access.

Flock itself states that agency sharing is optional and controlled by the customer agency.

"Can Flock tell police who committed a crime?"

No.

Flock can provide a vehicle-related investigative lead. It does not determine guilt, identify a person by facial recognition, or replace the investigative process.

Investigators must evaluate and corroborate the information.

"What prevents an officer from abusing the system?"

Training, policy, restricted access, individual accounts, and auditing.

Users must be authorized and trained. Searches are tied to individual accounts and recorded. Supervisors can review system activity, and violations can be addressed through Department disciplinary procedures.

"Why do we need Flock if we already have police cameras?"

Flock and traditional city cameras serve different investigative purposes.

Flock provides specialized vehicle and license-plate information that can help investigators identify vehicles and establish their movements through designated camera locations.

It can be used in conjunction with, rather than instead of, existing city cameras and traditional investigative techniques.

WHY THIS MATTERS TO THE COMMUNITY

Flock is particularly valuable when investigators have **limited information and need to develop a lead quickly.**

A victim may remember:

- A vehicle was dark-colored.
- It left the area around a certain time.
- It had a partial license plate.
- It was traveling in a particular direction.

Without additional information, that may be all investigators have.

Flock can potentially provide the next piece of the puzzle.

That lead can then be investigated and corroborated through traditional police work.

THE MESSAGE FOR HAVERHILL RESIDENTS

Flock is a tool — not a substitute for police work.

It does not identify people by their faces.

It does not predict criminal behavior.

It does not give officers unlimited or anonymous access.

It does not automatically share Haverhill information with every law-enforcement agency.

It does not keep routine vehicle data forever.

Instead, the system is designed to provide authorized investigators with another source of information when investigating crimes and public-safety incidents.

At the same time, the system provides safeguards intended to hold users accountable:

TRAINED USERS

Only authorized personnel receive access.

INDIVIDUAL ACCOUNTS

Each user's activity is associated with that user.

AUDIT TRAILS

Search activity is recorded and reviewable.

PURPOSE-BASED USE

Searches must have a legitimate investigative purpose.

30-DAY ROUTINE RETENTION

Routine ALPR data is automatically deleted after the standard retention period.

EVIDENCE PRESERVATION

Relevant information can be preserved when it becomes part of a legitimate investigation.

LOCAL CONTROL

Haverhill controls its participation in Flock data-sharing arrangements.

CONCLUSION

The Haverhill Police Department recognizes that any technology capable of providing law enforcement with additional information must be accompanied by **clear rules, training, accountability, appropriate oversight, and transparency with the public.**

Flock provides investigators with an additional tool that can assist in solving crimes and protecting victims.

Just as importantly, its use can be **limited, documented, audited, and held accountable.**

The Department's position is straightforward:

We should use every lawful investigative tool available to protect the community — while maintaining clear limits on how that technology can be used.

Flock is one of those tools.

Haverhill Police Department
Investigative Technology. Accountability. Public Safety.

FLOCK TECHNOLOGY

A Critical Investigative Resource for the Haverhill Police Department

City Council Briefing | Selected Case Highlights — 2025–2026

Flock technology has become an important investigative tool for the Police Department, providing timely vehicle identification, location information, and investigative leads that help officers identify involved parties, corroborate evidence, and move cases toward resolution.

The cases below represent only a sample of some of the major investigations in which Flock technology assisted. They do not represent the total number of incidents where Flock has provided investigative assistance. The technology has also assisted officers with numerous lower-level and quality-of-life crimes and calls for service, including shoplifting, leaving the scene of crashes, missing-person investigations, warrant investigations, and other offenses.

Selected Major Case Highlights

June 2026 — Shooting / Firearm & Narcotics Investigation
Flock was instrumental in identifying multiple defendants connected to a shooting associated with narcotics activity. Vehicle identification and travel information provided critical investigative leads, helped identify involved parties, and corroborated other evidence developed during the investigation.

June 2026 — Sex Offender Failure to Register
Flock provided investigative evidence establishing that a registered Level III sex offender was frequenting the city. Vehicle photographs and date- and time-stamped information provided important evidence during a joint investigation involving outside law enforcement agencies and the U.S. Marshals Service. Information developed through the investigation was shared with partner agencies and contributed to additional enforcement action.

April 2026 — Multiple Shootings / Firearms Investigation
Flock cameras provided critical investigative leads in identifying individuals connected to two shootings occurring within days of one another. The information helped investigators connect individuals and vehicles to the incidents and contributed to subsequent enforcement action.

February 2026 — Damage to City Property
Flock assisted investigators in identifying a vehicle involved in leaving the scene

after damage was caused to a city flower-bed installation. The information contributed to the identification and charging of the responsible individual.

February 2026 — Animal Cruelty Investigation
Flock evidence contributed to an animal cruelty investigation involving the abandonment of an animal. The information assisted investigators in developing evidence that ultimately supported criminal charges.

January 2026 — Armed Robbery
Flock technology provided investigative leads that assisted officers in identifying and apprehending an individual involved in an armed robbery.

January 2026 — Major Larceny
Flock assisted investigators in identifying a vehicle and developing leads in a major theft investigation involving approximately **$16,000 in stolen gold bars**. The information contributed to the identification and subsequent arrest of the defendant.

December 2025 — Drive-By Shooting
Flock assisted investigators in identifying and developing evidence against multiple individuals involved in a drive-by shooting. The technology provided important vehicle-related investigative leads that helped advance the case.

October 2025 — Shooting / Home Invasion
Flock was a key investigative resource in identifying and assisting with the apprehension of three individuals connected to a shooting and home invasion.

August 2025 — Road Rage / Firearm Investigation
Flock assisted investigators in identifying an individual involved in a road-rage incident in which a firearm was reportedly brandished. The information helped investigators develop the case and contributed to the subsequent arrest.

July 2025 — Domestic Violence / Criminal Harassment Investigation
Flock, in conjunction with city camera footage, assisted investigators in identifying and interviewing an individual involved in a domestic-related investigation. Vehicle information and other evidence contributed to charges including threats, criminal harassment, and malicious destruction of property.

May 2025 — Bank Fraud Investigation
Flock was an essential investigative tool in a complex bank fraud investigation involving individuals from outside Massachusetts. Vehicle identification provided

a critical lead that assisted investigators in identifying the individuals involved and making an arrest. Information developed through the investigation also supported follow-up investigations by other law enforcement agencies.

Additional Investigative Value

Beyond major felony investigations, **Flock technology regularly provides valuable investigative leads across a broad range of calls for service and criminal investigations.** Examples include:

- Shoplifting and retail theft
- Leaving the scene of crashes
- Missing-person investigations
- Warrant investigations
- Stolen vehicles and property
- Criminal harassment and stalking investigations
- Identification of vehicles associated with reported crimes
- Developing timelines and travel patterns
- Corroborating other investigative evidence

Domestic Violence, Stalking & Criminal Harassment

Flock has been particularly helpful in **stalking and criminal harassment investigations, including domestic-related incidents**. Vehicle presence information, combined with other investigative evidence, can help establish whether a suspect's vehicle was in a particular area at or around the time of a reported incident. This can provide investigators with an additional, objective source of evidence when building a case.

Bottom Line:
Flock technology provides the Police Department with an additional investigative resource that can turn otherwise limited vehicle information into actionable leads. The examples above demonstrate its value in violent crime, firearms investigations, major theft, fraud, domestic-related offenses, property crimes, and missing or wanted-person investigations, while representing only a small portion of its overall investigative use.

ALPR SYSTEMS

POLICY & PROCEDURE NO. 41.3.9	ISSUE DATE: November 9, 2012
	EFFECTIVE DATE: December 7, 2022
Approved:  **Chief of Police Wayne Tracy** **Date: May 20, 2026**	REVISION DATE: May 20, 2026
☐ NEW ☒ AMENDS ☐ RESCINDS	

I. PURPOSE

The purpose of this policy is to establish guidelines and procedures governing the authorized use, operation, access, management, retention, sharing, auditing, and security of Automated License Plate Recognition (ALPR) systems utilized by the Haverhill Police Department. This policy is intended to ensure that ALPR technology is used in a manner consistent with applicable federal and Massachusetts laws, constitutional protections, public safety objectives, and Department operational needs.

II. POLICY

It is the policy of the Haverhill Police Department (HPD) to utilize Automated License Plate Recognition (ALPR) technology solely for official and legitimate law enforcement and public safety purposes.

The Department utilizes the Flock Safety ALPR platform as its authorized ALPR vendor.

ALPR systems may only be used by trained and authorized personnel in accordance with this policy, applicable law, Criminal Justice Information Services (CJIS) requirements, Department procedures, and applicable contractual agreements.

The Department recognizes that ALPR technology provides valuable investigative and officer safety benefits while also implicating privacy and civil liberty concerns. Safeguards shall be maintained to ensure that ALPR systems are not misused and that access to ALPR data is appropriately restricted, monitored, secured, and audited.

ALPR systems shall not be used:

- To monitor individuals or groups solely based on race, ethnicity, religion, national origin, immigration status, gender, sexual orientation, political affiliation, or participation in constitutionally protected activities;

- For personal use, curiosity, harassment, or non-law-enforcement purposes;
- For generalized surveillance absent a legitimate law enforcement or public safety purpose.

An ALPR alert alone does not establish reasonable suspicion or probable cause. Officers must independently verify information through CJIS, NCIC, RMS, or other reliable sources prior to taking enforcement action whenever practicable.

The Haverhill Police Department does not participate in unrestricted nationwide ALPR data sharing networks. Access to Department-generated ALPR data shall be restricted to authorized criminal justice agencies and users approved by the Haverhill Police Department for legitimate law enforcement and public safety purposes consistent with this policy, Massachusetts law, CJIS regulations, and applicable contractual agreements.

The Department reserves the right to restrict, limit, suspend, or terminate data sharing access with any agency, entity, or user that fails to comply with Department policy, Massachusetts law, or applicable legal standards.

III. DEFINITIONS

- **Automated License Plate Recognition (ALPR) System**
  A system consisting of cameras, software, databases, and related equipment designed to capture, read, compare, and store digital images and associated data from vehicle license plates.
- **ALPR Operator**
  Trained and authorized Haverhill Police Department personnel approved to utilize ALPR systems.
- **ALPR Administrator**
  The designee of the Chief of Police responsible for oversight, compliance, auditing, training, and administration of ALPR systems and related data.
- **Alert**
  A visual and/or auditory notification generated when an ALPR system identifies a potential match between a scanned license plate and a designated hot list entry.
- **Alert Data**
  Information captured by an ALPR system related to a license plate associated with a hot list match.
- **ALPR Data**
  All scan files, images, metadata, alert data, query logs, and associated information generated or obtained through ALPR systems.
- **ALPR Data Query Logs**
  Electronic records documenting access to or searches of ALPR data, including the user, date, time, reason for access, and associated case or incident number.
- **Fixed ALPR Camera**
  An ALPR camera affixed to a stationary structure, including but not limited to poles, bridges, traffic infrastructure, or buildings.
- **Mobile ALPR Camera**
  An ALPR camera deployed on or within a police vehicle or portable enforcement platform.
- **Global Positioning System (GPS)**
  Technology used to determine and record geographic location information associated with ALPR scans.
- **Hit**

A notification indicating that a scanned license plate potentially matches a record associated with a stolen vehicle, wanted person, missing person, BOLO, protective order, or other authorized law enforcement alert category.

- **Hot List**
  A database or collection of license plate numbers associated with criminal investigations, stolen vehicles, wanted persons, missing persons, AMBER Alerts, BOLOs, or other legitimate public safety purposes.
- **Optical Character Recognition (OCR)**
  Technology used by ALPR systems to electronically convert images of license plates into machine-readable text.
- **Flock Safety System**
  The cloud-based Automated License Plate Recognition (ALPR) platform and associated camera systems provided by Flock Safety and utilized by the Haverhill Police Department for authorized law enforcement and public safety purposes.

IV. AUTHORIZED USES

ALPR systems may be utilized for:

- Locating stolen vehicles;
- Locating wanted or missing persons;
- Officer safety purposes;
- Criminal investigations;
- Locating vehicles associated with active BOLOs or AMBER Alerts;
- Department-related civil investigations authorized by law;
- Homeland security or public safety operations;
- Other legitimate law enforcement purposes authorized by the Department.

All ALPR use must be supported by specific and articulable law enforcement or public safety purposes.

V. PROHIBITED USES

ALPR systems and data shall not be used:

- For personal or non-official purposes;
- To conduct unauthorized surveillance;
- To monitor constitutionally protected activity absent a lawful investigative purpose;
- To access information without a legitimate law enforcement need;
- To disseminate ALPR data to unauthorized persons or entities;
- In violation of CJIS regulations, Massachusetts law, or Department policy.

Unauthorized access, dissemination, or misuse of ALPR systems or data may result in disciplinary action, revocation of system access, criminal prosecution, and civil liability.

VI. ADMINISTRATION

A. ALPR Administrator

The Captain of the Criminal Investigations Division shall serve as the ALPR Administrator.

Responsibilities include:

- Ensuring compliance with this policy;
- Coordinating training and user authorization;
- Monitoring ALPR use;
- Conducting periodic audits;
- Maintaining records of deployments and significant incidents;
- Reviewing and approving nontraditional deployments;
- Coordinating maintenance and vendor support;
- Monitoring legal developments and best practices;
- Recommending policy updates as necessary.

VII. AUTHORIZED USERS AND TRAINING

Only trained and authorized personnel shall operate or access ALPR systems.

Training shall include:

- System operation;
- Constitutional and privacy considerations;
- CJIS compliance;
- Data retention requirements;
- Verification procedures;
- Audit and accountability requirements;
- Cybersecurity awareness and access control requirements.

User credentials shall not be shared. Access shall be immediately revoked upon separation, suspension, transfer, or loss of authorization.

VIII. ALERT CATEGORIES

A. Authorized Alert Categories

The following categories are authorized:

- Stolen Vehicle;
- Warrants;
- Missing Person;
- Protective Order;

- NCMEC AMBER Alert;
- Missing Child;
- HPD-approved hot list entries.

B. Prohibited Alert Categories

The following categories are prohibited unless specifically authorized by the ALPR Administrator for a documented investigation:

- Sex Offender;
- Gang Member or Suspected Terrorist;
- Immigration Violator;
- Violent Person;
- Protective Interest;
- Supervised Release;
- Stolen Plate-only alerts absent investigative necessity.

Exceptions must be documented and supported by an articulable law enforcement purpose.

IX. MANUAL HOT LIST ENTRIES

Manual hot list entries may only be made by authorized supervisory personnel.

All manual entries shall include:

- Associated incident or case number;
- Requesting officer;
- Reason for entry;
- Date entered;
- Expiration or review date.

Prior to entry, license plates shall be verified through CJIS or other reliable databases.

Entries shall be removed immediately when no longer relevant or authorized.

X. FIELD OPERATIONS

A. Verification Requirements

Prior to initiating enforcement action based on an ALPR alert, officers shall:

1. Visually confirm the license plate number and state of issuance;
2. Verify the hit through CJIS, NCIC, RMS, or other appropriate databases whenever practicable;
3. Confirm the current validity of the alert.

Officers shall recognize that ALPR systems may generate false alerts or inaccurate reads.

B. Vehicle Stops

An ALPR alert alone shall not constitute probable cause or reasonable suspicion absent independent verification.

When a stolen vehicle hit is confirmed:

- Officers shall notify Dispatch;
- Additional units shall be requested as appropriate;
- Officers shall follow Department felony stop and pursuit policies.

C. Pursuits

Vehicle pursuits arising from ALPR-related incidents shall comply with all Department pursuit policies and procedures.

XI. CAMERA DEPLOYMENT

Fixed camera placement decisions shall be based upon legitimate law enforcement or public safety needs.

Cameras shall not be intentionally deployed to monitor constitutionally protected activities absent a lawful investigative purpose.

Nontraditional or temporary deployments require approval from the ALPR Administrator, Deputy Chief, or Chief of Police.

XII. EQUIPMENT MAINTENANCE

A. Technical Oversight

The Information Technology Director shall serve as Program Technician.

Responsibilities include:

- Periodic equipment inspections;
- Ensuring proper camera functionality and alignment;
- Coordinating vendor maintenance;
- Removing malfunctioning equipment from service.

B. Calibration

ALPR systems shall be tested daily for operational accuracy prior to deployment.

Equipment failing calibration or operational standards shall be removed from service until repaired.

XIII. INFORMATION MANAGEMENT

A. Data Access

Access to ALPR data shall be limited to authorized personnel with a legitimate law enforcement or public safety purpose.

Historical ALPR searches shall include:

- A documented reason for the query;

- An associated case or incident number;
- Compliance with Department procedures.

Users shall not access ALPR data for personal reasons, curiosity, or non-law-enforcement purposes.

B. Data Sharing

ALPR data may only be shared with authorized criminal justice agencies for legitimate law enforcement purposes and in compliance with Massachusetts law, CJIS regulations, Department policy, and applicable contractual agreements.

The Haverhill Police Department does not participate in unrestricted nationwide ALPR data sharing networks. Access to Department-generated ALPR data shall be limited to specifically authorized agencies and users approved by the Department.

All external requests for ALPR data shall be documented and subject to audit.

C. Audits

The ALPR Administrator shall conduct documented audits no less than quarterly to ensure:

- Authorized usage;
- Compliance with policy;
- Appropriate query documentation;
- Detection of misuse or unauthorized access.

Audit records shall be maintained in accordance with Department policy and applicable law.

D. Interstate Requests and Massachusetts Shield Law Compliance

The Haverhill Police Department recognizes that Massachusetts law restricts cooperation with certain out-of-state investigations and proceedings involving conduct that is lawful within the Commonwealth of Massachusetts.

Requests for ALPR data, historical searches, or related information originating from out-of-state agencies or jurisdictions shall be reviewed for compliance with applicable Massachusetts law, including any protections afforded under Massachusetts shield laws and related privacy protections.

No ALPR data shall be knowingly provided for the purpose of:

- Investigating or enforcing conduct that is lawful in Massachusetts;
- Assisting in out-of-state proceedings that conflict with Massachusetts legal protections;
- Circumventing constitutional, statutory, or privacy protections recognized under Massachusetts law.

Any questionable or sensitive interstate request shall be reviewed by command staff and, when appropriate, referred to the City Solicitor or legal counsel prior to disclosure.

E. Cybersecurity and Access Control

The Department shall maintain reasonable administrative, technical, and physical safeguards to protect ALPR systems and data from unauthorized access, disclosure, alteration, or destruction.

Cybersecurity protections shall include, where supported:

- Individual user credentials;
- Password complexity requirements;
- Multi-factor authentication;
- Role-based access controls;
- Access logging and monitoring;
- Timely revocation of user access upon separation or loss of authorization;
- Secure data transmission and storage practices consistent with CJIS standards.

Shared user accounts are prohibited.

Personnel shall immediately report any suspected cybersecurity incident, unauthorized access, data breach, or compromise involving ALPR systems or data to the Information Technology Director and chain of command.

F. Vendor Contract and Network Participation Restrictions

The Department's agreement with Flock Safety shall require that:

- Department-owned or Department-generated ALPR data remains subject to Department control and applicable Massachusetts law;
- Access to Department ALPR data is restricted to authorized users and agencies approved by the Department;
- The vendor shall maintain CJIS-compliant security standards and data protection measures;
- The vendor shall not independently sell, mine, monetize, or commercially distribute Department ALPR data;
- The vendor shall comply with Department-directed retention limitations;
- The Department may limit or disable participation in regional or nationwide sharing networks at its discretion.

The Haverhill Police Department does not authorize unrestricted nationwide sharing of ALPR data and shall maintain controls designed to limit access to authorized criminal justice purposes consistent with Massachusetts law and Department policy.

XIV. DATA RETENTION

Non-evidentiary ALPR data shall not be retained longer than thirty (30) days unless preserved for:

- A documented criminal investigation;
- Prosecution;
- Court order;
- Audit requirement;
- Litigation hold;

- Other legitimate law enforcement purposes authorized by law.

Data retained for investigative or evidentiary purposes shall be maintained in accordance with Massachusetts Public Records Law and Department evidence retention requirements.

The Department shall not maintain bulk ALPR databases on Department-owned servers unless specifically authorized by the Chief of Police.

XV. PUBLIC RECORDS REQUESTS

Requests for ALPR records or data pursuant to Massachusetts Public Records Law shall be coordinated through the Records Division and reviewed for applicable exemptions, investigatory protections, privacy considerations, shield law considerations, and CJIS restrictions.

XVI. POLICY REVIEW

The ALPR Administrator shall conduct an annual review of this policy and recommend updates as necessary to address:

- Legal developments;
- Technological changes;
- Operational needs;
- Privacy considerations;
- Cybersecurity requirements;
- Best practices.

The Department reserves the right to amend this policy as necessary to ensure compliance with evolving legal, technological, and operational standards.